

Rules under the Bihar and Orissa Places of Pilgrimage Act, 1920

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Rules under the Bihar and Orissa Places of Pilgrimage Act, 1920

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Rules under the Bihar and Orissa Places of Pilgrimage Act, 1920

Rule RULES-UNDER-THE-BIHAR-AND-ORISSA-PLACES-OF-PILGRIMAGE-ACT-1920 of 1920

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Rules under the Bihar and Orissa Places of Pilgrimage Act, 1920

Published vide Notification No. 4539-L.S.-G., dated the 28th August 1922

Notification No. 4539-L.S.-G., dated the 28th August 1922, by the Government of Bihar and Orissa, Local Self-Government Department. - In exercise of the power conferred by Section 23(1) of the Bihar and Orissa Places of Pilgrimage Act, 1920, the Government of Bihar and Orissa in the Ministry of Local Self-Government are pleased to make the following Rules under Sections 4, 5 and 6 of the said Act:-

1.

(i)

Application for the grant of a licence for the accommodation of pilgrims shall be filed at least 20 days before the date fixed for the principal festival, which will be notified by the Magistrate in due time every year.

Licence will ordinarily be granted for the period ending on the 31st December of the year in which it is granted.

(ii)

The application shall be in Form A appended to these Rules.

2.

An inspection fee of rupee one shall be deposited in cash at the time of presenting the application. When the application is for licensing more than one house a separate fee for each house shall be payable.

3.

If the Magistrate decides to license a house for which application has been made, he shall inform the applicant and shall require him to deposit in cash a license fee calculated on the total number of pilgrims for which the house is to be licensed at the rates specified in the schedule attached to these Rules :

Provided that an additional fee the amount of which shall be fixed by the Magistrate but which shall not exceed 50% of the ordinary fee shall be payable if application is made between the 20th and the 10th day previous to the date fixed for a principal festival:

Provided also that the Magistrate may permit the applicant to pay the license fee in such instalments as the Magistrate shall prescribe :

Provided further that when the Magistrate permits payment by instalments, the applicant shall give security to the satisfaction of the Magistrate for the payment of the balance.

The Magistrate shall not entertain an application for the grant of a license prescribed after the 10th day previous to the date of principal festival, unless he considers the grant of renewal of the license necessary in view of the large number of pilgrims.

4.

The certificate embodying the result of inspection of a house under Section 5 of the Act shall be in Form B appended to these Rules.

5.

The license shall be in Form C appended to these Rule.

6.

No house shall be licensed unless the building or designed so as to comply with the following conditions :-

(a)

(i)

Airspace and ventilation.-(i) For each lodger excluding children under three years of age the superficial area and air space shall ordinarily be not less than 24 square feet and 240 cubic feet, respectively;

(ii)

Each room shall be provided with barred apertures, exclusive of the doorway of a total area not less than one tenth of the floor area. Wherever possible thorough ventilation must be provided. Where such ventilation is not possible, the superficial area and air space for each lodger shall be increased as the Magistrate deems fit.

(iii)

The height of no room or verandah shall be less than 7½ feet in the case of houses now in existence or less than 9 feet in case of houses to be erected hereafter.

(iv)

In special cases, the above conditions may be relaxed by the Magistrate provided that the superficial area and air space for each lodger shall not be reduced below 18 square feet and 180 cubic feet respectively.

(b)

Light.-If in the opinion of the Magistrate the lighting is defective the apertures prescribed by Rule 6(a) (ii) shall be increased by not more than 50 per cent.

(c)

Latrines and urinals.-(i) Separate latrine and urinal accommodation for males and females shall be provided.

(ii)

There shall be at least two latrines and one urinal for males and three latrines and one urinal for females for each hundred lodgers.

(iii)

There shall be a clear space of 3 square feet for each seat.

(iv)

The seat, the space below it and the walls to a height of 2 feet above, it shall be built of non-absorbant material.

(v)

The floor of the space below the seat shall be at least 6 inches above the ground level.

(vi)

The seats shall be so constructed that liquid and solid fall into separate pans or buckets which shall fit closer under the seats, shall not leak and shall have an easily cleansed surface.

(vii)

Latrines and urinals shall be easily accessible from outside for cleaning.

(viii)

They shall be well lighted and ventilated, having for the purpose at least one aperture of 2 square feet opening directly to the external air.

(ix)

They shall be properly screened off when in use.

(d)

Water-supply.-(i) If in the opinion of the Magistrate a water-supply connection is feasible, the owner of a licensed house may be required to have it laid on to the house.

(ii)

Where a water connection has been made all wells may be closed at the discretion of the Magistrate.

(iii)

All wells shall comply with the following conditions :-

(1)

They must be built of solid masonry down to water level.

(2)

They must have a parapet wall at least 2½ feet high round the well mouth and outside of this a protecting platform all round at least 4 feet wide and provided with a masonry drain to carry off all spilled water from the proximity of the well.

(3)

They must in no case be nearer than 25 feet from a latrine, urinal, cesspool or other receptacle for filth or rubbish.

(iv)

Each well should be covered in and provided with a semi-rotate or other suitable type of pump or upright pulley rope and bucket.

(e)

Drainage.-In licensed houses which have water flushed latrine and urinals connected with sewers, the drains must be flushed and cleaned, and in no case shall they pass under the floors of the rooms. The drains shall be constructed of glazed earthenware pipes laid in cement, or any other materials, which will give a smooth, even, non-absorbant surface. The drains shall discharge into the street surface drains if these have been constructed to receive sullage, otherwise into a cesspool made of some impervious material and so situated that it can be easily emptied from outside the house.

(f)

Bathing accommodation.-Each licensed house accommodating more than twenty lodgers shall have such bathing accommodation as the Magistrate deems fit. If bathing accommodation is ordered, the floor must be laid in concrete or flags sand must be connected by a masonry surface drain with the general drainage of the premises.

7.

The owner or in his absence the person in charge of any licensed house

(i)

keep one sweeper for every hundred pilgrims;

(ii)

provide open kerosene tins, tarred within and without at the rate of one for every ten pilgrims, for the collection of rubbish and refuse;

(iii)

Cause the living rooms, verandahs and court yards to be swept and cleaned daily and the collections of rubbish and refuse to be removed;

(iv)

cause all wells attached to the licensed house to be thoroughly cleansed once a year and, except in the case of covered wells fitted with pump shall have all wells disinfected at such times and in such manner as the Magistrate shall prescribe;

(v)
cause all latrines, urinals, drains, cesspools and receptacles for rubbish to be cleaned daily;

(vi)
display on a conspicuous part of the main entrance of the house a ticket showing in red letters not less than six inches in height-

(a)
the registered number of licence;

(b)
the number of pilgrims which the house is licensed to accommodate;

(c)
the period during which the license is in force;

(vii)
display in conspicuous place on the lintel of each room or on the posts of each verandah licensed for the accommodation of pilgrims a ticket showing the number of pilgrims for which it is licensed;

(viii)
report immediately to the nearest police-station all cases of serious illness and all deaths occurring in the licensed house information shall be sent immediately by the officer-in-charge of the police station to the Medical Officer of Health, and

(ix)
afford assistance to the Medical Officer of Health or his assistant in removing the sick persons, if necessary, to hospital and in getting the house disinfected.

Note.-The above Rules shall be entered on the license as the conditions thereof and any breach of these conditions is punishable under Section 17 of the Act.

8.
The Magistrate or the Medical Officer of Health may cause to be destroyed or disinfected all infected clothing, bedding or other articles in a licensed house and may cause to be disinfected any licensed house.

9.
Upon the inspection and examination of any licensed house the Magistrate or Medical Officer of Health or other person authorised to make such inspection and examination shall record a succinct report of the result of such inspection and examination.

(1)
Date of inspection.

(2)
Number of licensed house.

(3)
Number of keeper.

(4)
Name and designation of inspecting officer.

(5)
Result of inspection.

(6)
Order by the Magistrate or Medical Officer of Health.

10.
The Magistrate may exempt any licensed house for reasons to be recorded in writing from the operation of any of these Rules.

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